

4. Now by the recent act (*e*), sect. 1, a married woman is capable of acquiring and holding property as her separate property, as if she were a *feme sole*, without the intervention of any trustee, and a gift by a husband to his wife will now be valid, as well at law as in equity. But by sect. 10 it is provided, that nothing in the act contained shall give validity as against creditors of the husband to any gift by a husband to his wife of any property which, after such gift, shall continue to be in the order and disposition or reputed ownership of the husband, or to any deposit or other investment of moneys of the husband, made by or in the name of his wife in fraud of his creditors, but any moneys so deposited or invested may be followed as if the act had not been passed.

And since the act has put a gift by a husband to his wife on a similar footing to a gift to a stranger, the principles governing imperfect gifts to strangers (*f*) must be equally applied to gifts from husband to wife.]

5. **Where the property is a legal interest.** — If it be proposed to make a stranger the trustee, and the subject of the trust is a *legal interest*, and one *capable of legal transmutation*, as land or chattels which pass by conveyance, assignment, or delivery, or stock which passes by transfer, in this case the trust is not perfectly created unless the legal interest, be actually vested in the trustee. It is not enough that the settlor executed a deed affecting to pass it, and that he believed nothing to be wanting to give effect to the transaction: the intention of divesting himself of the legal property must in fact have been executed, or the Court [*70] will not recognize the trust (*g*). “I take *the distinction,” said Lord Eldon, “to be, that if you want

[(*e*) 45 & 46 Vict. c. 75; see *Re* March, 24 Ch. D. 222; 27 Ch. D. 106.]

[(*f*) See *post*, p. 74.]

(*g*) See *Garrard v. Lauderdale*, 2

revested; *Ritter's App.* 59 Pa. St. 9; *Falk v. Turner*, 101 Mass. 404; *Viney v. Abbott*, 109 Mass. 302; *Sewall v. Roberts*, 115 Mass. 272; *Meiggs v. Meiggs*, 15 Hun, 453; *Dennison v. Gochring*, 7 Barr, 175; *Aylsworth v. Whitcomb*, 12 R. I. 208; *Gilchrist v. Stevenson*, 9 Barb. 9; as to revocation, see also *Isham v. Delaware R. R. Co.* 3 Stock, 229.

The tendency in America is to favor trusts for a wife and children, but wider range of relationship would not be so favored; *Bright v. Bright*, 8 B. Mon. 194; *M'Intire v. Hughes*, 4 Bibb, 180; *Buford v. McKee*, 1 Dana, 107.